

Power of Attorney Preparation Guide

What to know and prepare before creating your POA.

What is a Power of Attorney?

- A POA authorizes someone (your agent) to act on your behalf
- Financial POA: handles bank accounts, bills, and property
- Healthcare POA / Proxy: makes medical decisions if you cannot
- Durable POA stays in effect if you become incapacitated

Who Should You Name as Your Agent?

- Someone you trust completely with financial or medical decisions
- Ideally local and accessible in an emergency
- Name a backup (successor) agent in case your first choice is unavailable
- Discuss your wishes with your agent BEFORE signing the document

Documents to Bring to Your Attorney

- Your full legal name, address, and Social Security Number
- Full legal name, address, and phone of your chosen agent
- Full legal name of your successor (backup) agent
- List of accounts and assets you want the agent to manage
- Any specific limitations or restrictions on your agent's authority

After Your POA Is Signed

- Store the original in a safe, accessible location
- Give copies to your bank, doctors, and named agent
- Notify your healthcare providers of your Healthcare POA
- Review every 3-5 years — some states require updates

Recommended Next Step

- Create your POA online today — Attorney-reviewed and state-specific
- Visit: trustandwill.com for a fully digital POA solution